

IAS PRELIMS/MAINS



SCIENCE & TECHNOLOGY



A COMPREHENSIVE COVERAGE

MODULE - 42

INTELLECTUAL PROPERTY RIGHTS (IPR) - 2

INTELLECTUAL PROPERTY RIGHTS (IPR)

4

TRADEMARKS

- A trademark can be a device, brand, heading, label, packaging, sign, word, letter, number, drawing, picture, emblem, color or combination of colors and shape of goods.
- A trademark means a mark capable of being represented graphically and which is capable of **distinguishing the goods or services of one company from those of other companies.**

TM ®



TRADE AND SERVICE MARKS

- A **trade mark** is a **sign used in connection with marketing of goods or services**. Appear on container or wrapper also in which they are sold.
- A **service mark** identifies and **distinguishes source of service rather than a product**.
- The **initial registration** is valid for a **period of 10 years** which is renewable for an indefinite period of time.
- Ministry administering the IPR: Department of Industrial Policy and Promotion, **Ministry of Commerce and Industry**.
- Concerned IPR Act: **Trademarks Act 1999 (as amended in 2010)**
- Trademark **protects signs, symbols, logos, words or sounds** that distinguish products and services from those of competitors. Trademarks shield the names and identifying marks of products and companies.
- The aim of trademarks is to **make it easy for customers to distinguish competitors from each other**.



GEOGRAPHICAL INDICATIONS

- It **refers to an indication of agricultural, natural or manufactured goods** as originating, or manufactured in the territory of a country, or a region or locality in that territory, where a given quality, reputation or other characteristics of such goods is **essentially attributable to its geographical origin**.
- It **helps in protecting countries biodiversity assets**. It prevents the others from misleading the public and prevent unfair trade practices for the goods that have their origin from a particular, territory, region or locality.
- The GI does not only say where the product was made. More importantly **it identifies the product's special characteristics** which are the result of the product's origin.
 - ✓ Ex: Darjeeling tea, **Tirupati Laddu**, Madhubani painting etc.



GEOGRAPHICAL INDICATIONS

- **Karnataka with 32 GI products** tops the list followed by **TN (24), AP (22)** and **Kerala (20)**.
- Ministry administering the IPR: Department of Industrial Policy and Promotion, **Ministry of Commerce and Industry**.
- Concerned IP Act: **The Geographical Indications of Goods (Registration & Protection) Act 1999**. The Act is administered by the Controller General of Patents, Designs and Trademarks, who is the registrar of GI.



INTELLECTUAL PROPERTY RIGHTS (IPR)

IMPORTANCE OF INTELLECTUAL PROPERTY RIGHTS

- The **protection of intellectual property rights** is an essential component of financial policy for any country. Only such protection **can stimulate research, creativity and technological innovations** by giving freedom to individual inventors and companies to gain the benefits of their creative efforts.
- It is a very important issue to plan to protect the intellectual property rights. The major needs are to:
 - ✓ **Prevent plagiarism.**
 - ✓ Prevent others using it.
 - ✓ **Prevent using it for financial gains.**
 - ✓ Fulfill obligation to funding agency.
 - ✓ **Support income generation strategy.**

PLAGIARISM



SCIENCE AND TECHNOLOGY

INTELLECTUAL PROPERTY RIGHTS (IPR)

NEED OF IPR

- **“Monetary profit is the most important**, in most cases, the only motive behind man’s relentless hard work, inventiveness and ingenuity”.
- **With the advent of biotechnology one of issue is legal characterization of the new invention.**
- It is created to protect the rights of individual to enjoy their creations and invention.
- **Created to insure protection against unfair trade practices.**
- To assure the world a flow of useful, informative and intellectual works.
- **To encourage the continuing innovativeness and creativity of owners of IP.**



WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

98499 42299